

1 ENGROSSED SENATE
2 BILL NO. 1579

By: Paxton of the Senate

3 and

4 Hilbert of the House

5
6 An Act relating to ad valorem tax; amending 68 O.S.
7 2021, Section 2876, as last amended by Section 1,
8 Chapter 105, O.S.L. 2025 (68 O.S. Supp. 2025, Section
9 2876), which relates to notice of increase of
10 property valuation and protest; requiring certain
11 notice of valuation increase to include taxpayer bill
12 of rights; prescribing language to be included in
13 taxpayer bill of rights; and providing an effective
14 date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 68 O.S. 2021, Section 2876, as
17 last amended by Section 1, Chapter 105, O.S.L. 2025 (68 O.S. Supp.
18 2025, Section 2876), is amended to read as follows:

19 Section 2876. A. If the county assessor increases the
20 valuation of any personal property above that returned by the
21 taxpayer, or in the case of real property increases the fair cash
22 value or the taxable fair cash value from the preceding year, or
23 pursuant to the requirements of law if the assessor has added
24 property not listed by the taxpayer, the county assessor shall
notify the taxpayer in writing of the amount of such valuation as
increased or valuation of property so added. Provided, if the

1 county assessor determines that a mailing to property owners exempt
2 from payment of ad valorem tax pursuant to Sections 8E and 8F of
3 Article X of the Oklahoma Constitution would create an undue burden,
4 then the county assessor may suspend notifications to those property
5 owners.

6 B. For cases in which the taxable fair cash value or fair cash
7 value of real property has increased, the notice shall include the
8 fair cash value of the property for the current year, the taxable
9 fair cash value for the preceding and current year, the assessed
10 value for the preceding and current year ~~and~~, the assessment
11 percentage for the preceding and current year, and the taxpayer bill
12 of rights as provided in subsection I of this section. For cases in
13 which the real property is a homestead, as defined in Section 2888
14 of this title, the notice shall include information on the
15 application for a limit on the fair cash value of a homestead
16 property as provided for in Section 8C of Article X of the Oklahoma
17 Constitution.

18 C. For cases in which the county assessor increases the
19 valuation of any personal property above that returned by the
20 taxpayer, the notice shall describe the property with sufficient
21 accuracy to notify the taxpayer as to the property included, the
22 fair cash value for the current year, the assessment percentage for
23 the current year, any penalty for the current year pursuant to
24

1 subsection C of Section 2836 of this title, and the assessed value
2 for the current year.

3 D. The notice shall be mailed to the taxpayer at the taxpayer's
4 last-known address and shall clearly be marked with the mailing
5 date. The assessor shall have the capability to duplicate the
6 notice, showing the date of mailing. Such record shall be prima
7 facie evidence as to the fact of notice having been given as
8 required by this section.

9 E. The taxpayer shall have thirty (30) calendar days from the
10 date the notice was mailed in which to file a written protest with
11 the county assessor specifying objections to the increase in fair
12 cash value or taxable fair cash value by the county assessor;
13 provided, in the case of a scrivener's error or other admitted error
14 on the part of the county assessor, the assessor may make
15 corrections to a valuation at any time, notwithstanding the thirty-
16 day period specified in this subsection. The protest shall set out
17 the pertinent facts in relation to the matter contained in the
18 notice in ordinary and concise language and in such manner as to
19 enable a person of common understanding to know what is intended.
20 The protest shall be made upon a form prescribed by the Oklahoma Tax
21 Commission.

22 F. A taxpayer may file a protest if the valuation of property
23 has not increased or decreased from the previous year if the protest
24

1 is filed on or before the first Monday in April. Such protest shall
2 be made upon a form prescribed by the Oklahoma Tax Commission.

3 G. At the time of filing a protest pursuant to subsections E
4 and F of this section, the taxpayer shall also file the form
5 provided for in Section 2835 of this title. If the taxpayer fails
6 to file the required form, a presumption shall exist in favor of the
7 correctness of the county assessor's valuation in any appeal of the
8 county assessor's valuation.

9 H. The county assessor shall schedule an informal hearing with
10 the taxpayer to hear the protest as to the disputed valuation or
11 addition of omitted property. The informal hearing may be held in
12 person or may be held telephonically, if requested by the taxpayer.
13 A taxpayer that is unable to participate in a scheduled informal
14 hearing, either in person or telephonically, shall be given at least
15 two additional opportunities to participate on one of two
16 alternative dates provided by the county assessor, each on a
17 different day of the week, before the county assessor or an
18 authorized representative of the county assessor. The assessor
19 shall issue a written decision in the matter disputed within seven
20 (7) calendar days of the date of the informal hearing and shall
21 provide by regular or electronic mail a copy of the decision to the
22 taxpayer. The decision shall clearly be marked with the date it was
23 mailed. Within fifteen (15) calendar days of the date the decision
24 is mailed, the taxpayer may file an appeal with the county board of

1 equalization. The appeal shall be made upon a form prescribed by
2 the Oklahoma Tax Commission. One copy of the form shall be mailed
3 or delivered to the county assessor and one copy shall be mailed or
4 delivered to the county board of equalization. On receipt of the
5 notice of an appeal to the county board of equalization by the
6 taxpayer, the county assessor shall provide the county board of
7 equalization with all information submitted by the taxpayer, data
8 supporting the disputed valuation, and a written explanation of the
9 results of the informal hearing.

10 I. The taxpayer bill of rights to be included on the written
11 notification required pursuant to subsection A of this section shall
12 include the words "As an Oklahoma Taxpayer:" as well as the
13 following list of taxpayer rights:

14 1. You have the right to equal and uniform taxation;

15 2. You have the right to ensure that your property is appraised
16 uniformly with similar property in this state;

17 3. You have the right to have your property appraised according
18 to the rules and standards set pursuant to state law and the
19 Oklahoma Constitution for the purpose of providing for the equitable
20 use valuation of property in this state;

21 4. You have the right to receive exemptions provided pursuant
22 to the Oklahoma Constitution or other tax relief for which you
23 qualify and apply for in a timely manner;
24

1 5. You have the right to be provided notice of property value
2 increases, which shall include the fair cash value of the property
3 for the current year, the taxable fair cash value for the preceding
4 and current year, the assessed value for the preceding and current
5 year, and the assessment percentage for the preceding and current
6 year;

7 6. You have the right to examine the budgets and levies on file
8 with your county clerk and the State Auditor and Inspector;

9 7. You have the right to request lists of properties and their
10 descriptions and valuations from your county assessor;

11 8. You have the right to file a protest against the valuation
12 of your property and request an informal hearing to dispute the
13 valuation;

14 9. You have the right to appeal to the county board of
15 equalization a decision made pursuant to a requested informal
16 hearing and be granted a hearing with such board;

17 10. Upon a decision made pursuant to the hearing with the
18 county board of equalization, you have the right to appeal such
19 decision to the district court and, subsequently, to the Oklahoma
20 Supreme Court; and

21 11. You have the right to petition certain local taxing
22 jurisdictions for the repeal or reduction of certain property tax
23 levies.

24 SECTION 2. This act shall become effective November 1, 2026.

1 Passed the Senate the 24th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives